

Before the
FEDERAL MARITIME COMMISSION

Docket No. 24-21

PKDC, LLC

v.

CMA CGM S.A.

UNOPPOSED MOTION TO AMEND THE SCHEDULING ORDER

Pursuant to 46 C.F.R. Sections 502.69, 502.79, and 502.102 of the Federal Maritime Commission’s Rules of Practice and Procedure, Complainant PKDC, LLC (“Complainant” or “PKDC”) submits this Unopposed Motion to Amend the Scheduling Order (“Motion”) to allow sufficient time to complete discovery and develop a full record in this matter. As discussed below, good cause exists for the instant Motion.

I. Background

On April 23, 2025, the Presiding Officer entered an amended scheduling order (“Amended Scheduling Order”) with the following deadlines relevant to this Motion:

May 8, 2025	Submission of any unresolved disputes concerning initial RFPs and interrogatories and objections and responses thereto (after counsel confer)
June 24, 2025	Completion of productions of documents and ESI in response to initial RFPs
July 7, 2025	Disclosure of initial expert reports, if any
July 7, 2025	Last day to serve interrogatories, requests for admission, and RFPs
July 18, 2025	Complete depositions of fact witnesses
July 18, 2025	Disclosure of rebuttal expert reports, if any

August 5, 2025	Complete expert depositions
August 5, 2025	Close of discovery
September 5, 2025	Complainant's initial brief, proposed findings of fact, and appendix
October 6, 2025	Respondent's opposition brief, responses to proposed findings of fact, proposed findings of fact, and appendix
October 21, 2025	Complainant's reply and responses to proposed findings of fact

In accordance with the Amended Scheduling Order, the parties worked together in good faith and resolved the bulk of their discovery differences. Thereafter, on May 8, 2025, Complainant filed a motion to compel discovery from Respondent on the last remaining disputes and on May 15, 2025, Respondent filed its opposition. Thereafter, on June 9, 2025, the Presiding Officer issued a decision partially granting and partially denying Complainant's motion. See Docket No.32. With respect to Interrogatory 26, the Presiding Officer ordered Complainant to supplement its request within 10 days. In accordance with the Order, on June 16, 2025, Complainant served upon Respondent amended Interrogatory No. 26. In addition, Complainant continues to work towards reviewing documents to respond to Respondent's discovery demands. As explained below, because of the complexity and breadth of the discovery in the instant matter, additional time is necessary.

II. Argument

Rule 102(a) of the Commission's Rules of Practice and Procedure, 46 C.F.R. Section 502.102(a), provides in relevant part: "Motions for enlargement or reduction of time for the filing of any pleading or other document, or in connection with the procedures of subpart L of this part, may be granted upon a showing of good cause." Respondent submits good cause exists in this instance.

a. Extension of Deadlines of Discovery and Briefing

FMC regulations require discovery to be completed within 150 days of a respondent's answer (46 C.F.R. 502.141(g)) which is sufficient time for many disputes. However, this matter involves a multitude of complex claims, a request for substantial reparations, and relevant discovery spans thousands of shipments, denied requests and multiple years. Respondent has already collected tens of thousands of documents and is still in the process of the time consuming but necessary review for relevance, confidentiality, required redactions, and privileges ahead of production. While significant progress has been made, due to the painstaking process required, additional time is necessary. Respondent reasonably believes it can complete the process and finalize its responses by July 24, 2025, which is an extension of thirty (30) days. Undersigned counsel notes that the additional requested time also takes into account co-counsel's recent health issues which will likely limit his ability to work on the matter.

In complex matters such as the instant case, policy considerations favor allowing sufficient time to develop a complete evidentiary record. In *Samsung Electronics America, Inc. v. SM Line Corp.*, Dkt. No. 23-01, 2024 WL 4357751, at *1 (ALJ Sept. 23, 2024), it was emphasized that the policy and responsibility of the Commission, and by delegation of authority, the presiding judge, is to inquire into and consider all relevant facts. Adherence to a schedule should not override these policy considerations. *See also Anderson International Transport and Own Anderson - Possible Violations of Sections 8(a) and 19 of the Shipping Act of 1984*, Dkt. No. 07-02, 2009 WL 6084172, at *2 (FMC Dec. 4, 2009) (reopening the record because Commission precedent "favors the agency making its decision based on the most complete record available"). Indeed, the FMC has allowed for additional time in similar instances. For example, a 62-day extension to complete discovery was granted in *One*

Banana North America Corp. v. Hapag-Lloyd AG and Hapag-Lloyd (America) LLC, FMC Docket No. 22-03, Revised Scheduling Order, June 22, 2022; a 60-day extension to complete discovery was granted in *Intermodal Motor Carriers Conference, American Trucking Associations, Inc. v. Ocean Carrier Equipment Management Association Inc., et al*, FMC Docket No. 20-14, Amended Scheduling Order, June 9, 2021; and a 60-day extension to complete discovery was in *Bed Bath & Beyond Inc., v. Yang Ming Marine Transport Corp.* FMC Docket No. 23-10, Revised Scheduling Order, Order on Motions, January 11, 2024.

III. Proposed Amended Schedule

Given the complexity and voluminous nature of the discovery necessary in the instant matter, Complainant requests a 30-day extension to the Amended Scheduling Order to complete discovery as follows:

July 24, 2025	Completion of productions of documents and ESI in response to initial RFPs
August 6, 2025	Disclosure of initial expert reports, if any
August 6, 2025	Last day to serve interrogatories, requests for admission, and RFPs
August 18, 2025	Complete depositions of fact witnesses
August 18, 2025	Disclosure of rebuttal expert reports, if any
September 4, 2025	Complete expert depositions
September 4, 2025	Close of discovery
October 6, 2025	Complainant's initial brief, proposed findings of fact, and appendix
November 3, 2025	Respondent's opposition brief, responses to proposed findings of fact, proposed findings of fact, and appendix
November 20, 2025	Complainant's reply and responses to proposed findings of fact

On June 18, 2025, undersigned counsel conferred with counsel for Respondent concerning an extension. On June 19, 2025, counsel for Respondent, indicated that there is no opposition to the

extension requested in this motion.

As good cause exists, this extension will not cause undue delay but allow for the creation of a complete record in this complex matter, and there is no opposition, Complainant respectfully requests that the Motion be granted.

WHEREFORE, the Respondent prays that its Unopposed Motion to Amend the Scheduling Order be granted.

Dated: June 20, 2025

Respectfully submitted,

SANDLER, TRAVIS & ROSENBERG, P.A

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Counsel for Complainant PKDC, LLC

CERTIFICATE OF SERVICE

I hereby certify that on June 20, 2025, the foregoing Unopposed Motion was served by email upon counsel for Respondent CMA CGM at the address listed below:

Wayne Rohde Esq.
Counsel for Respondent
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Dated: June 20, 2025

/s/ Jason M. Kenner
JASON M. KENNER